No. 24-1766

IN THE UNITED STATES COURT OF APPEALS
FOR THE FOURTH CIRCUIT

DEREK CHAPMAN,

Plaintiff-Appellant,

v.

MARYLAND DEPARTMENT OF STATE POLICE
OFFICE OF THE STATE FIRE MARSHAL,

Defendant-Appellee.

On Appeal from the United States District Court for the District of Maryland
(A. David Copperthite, Magistrate Judge)

BRIEF OF APPELLEE

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March 21, 2025

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UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

DISCLOSURE STATEMENT

No. 24-1766

Pursuant to FRAP 26.1 and Local Rule 26.1, Maryland State Police, who is appellee, makes the following disclosure:

1. Is party/amicus a publicly held corporation or other publicly held entity?
YES ☐ NO ☒

2. Does party/amicus have any parent corporations?
YES ☐ NO ☒

3. Is 10% or more of the stock of a party/amicus owned by a publicly held corporation or other publicly held entity?
YES ☐ NO ☒

4. Is there any other publicly held corporation or other publicly held entity that has a direct financial interest in the outcome of the litigation?
YES ☐ NO ☒

5. Is party a trade association? (amici curiae do not complete this question)
YES ☐ NO ☒

6. Does this case arise out of a bankruptcy proceeding?
YES ☐ NO ☒

7. Is this a criminal case in which there was an organizational victim?
YES ☐ NO ☒

/s/ Phillip M. Pickus
September 13, 2024

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QUESTIONS PRESENTED FOR REVIEW

1. Did the district court correctly conclude that Derek Chapman could not establish a prima facie discrimination case based on (a) his repeated failure to satisfy his employer's expectations, and (b) his inability to identify other employees outside of his protected class who engaged in similar misconduct but were treated more favorably?

2. Did the district court correctly conclude that Mr. Chapman failed to establish a prima facie retaliation case, when his employer had already begun to take progressive disciplinary measures against him before he engaged in any protected activity, and he could not show that his protected activity and his employer's alleged adverse action were causally connected?

3. Did the district court correctly conclude that Mr. Chapman failed to establish that his employer's legitimate, non-discriminatory reasons behind its corrective action against him were pretextual in light of the well-documented history of his performance deficiencies?

STATEMENT OF THE CASE

This is an appeal of the United States District Court for the District of Maryland's decision to enter summary judgment in favor of the Office of the State Fire Marshal ("the Office") as to appellant Derek Chapman's Title VII discrimination and retaliation claims against the Office. (J.A. 441-453); see 42 U.S.C. §§ 2000e – 2000e-17 (LexisNexis 1992) ("Title VII"). Mr. Chapman claims that the Office discriminated

against him based on his color and his race, and that the Office retaliated against him for voicing his concerns about race relations in the workplace and for filing a fair practices complaint. (J.A. 6-34.)

The Office of the State Fire Marshal and Its Primary Duties.

The Office of State Fire Marshal is a statutorily-created, paramilitary organization under the Department of State Police that enforces fire- and arson-related laws in Maryland and investigates the origin and circumstances of fires and explosions. See Md. Code Ann., Pub. Safety §§ 6-301, 6-302, 6-309 (LexisNexis 2022). The State Fire Marshal oversees the Office, which is geographically divided into seven smaller regions throughout the state. Pub. Safety § 6-302; (J.A. 76, J.A. 80.) The State Fire Marshal's second-in-command is the Chief Deputy Fire Marshal, and each region is overseen by its first-line supervisors: the Deputy Chief Fire Marshals. (J.A. 76, J.A. 78.) The starting rank in the Office is that of a Deputy Fire Marshal. (J.A. 74.) All Deputy Fire Marshals in the Office are sworn police officers. (J.A. 74.)

One of the primary duties of fire marshals at the Office is to complete and submit "fire origin reports," which document whether the cause of a particular fire or explosion was intentional or accidental. (J.A. 81, J.A. 109.) These reports play a crucial role in informing the work of prosecutors, investigators, and insurance professionals alike. (J.A. 82-85, J.A. 109.)

Mr. Chapman's Chronic Issue with Overdue Reports

In 1998, the Office hired Mr. Chapman as a Deputy Fire Marshal and assigned him to the North East Regional Office, which is more commonly referred to as "NERO." (J.A. 72-73, J.A. 76.) Brian Geraci was the State Fire Marshal during the relevant time of Mr. Chapman's employment. (J.A. 77.) Greg Der became the Chief Deputy Fire Marshal in 2017. (J.A. 88.)

The Office promoted Mr. Chapman to Deputy Chief Fire Marshal of NERO in June of 2018. (J.A. 78-79.) Notably, Mr. Chapman maintained a backlog of overdue fire origin reports leading up to his promotion. (J.A. 92-93.) Since the Office holds its supervisors to a higher standard than non-supervisors, this came up as a concern during Mr. Chapman's promotional interview, because he would soon be responsible for the timely submission of his subordinates' reports, along with his own. (J.A. 91-93, J.A. 110.) Mr. Chapman responded by assuring his command that he would take action to see that the number of delinquent reports was reduced. (J.A. 91-93.)

But Mr. Chapman did not keep this promise. In February of 2018, Mr. Chapman still had 41 incomplete reports and NERO had a total of 261 late or incomplete reports. (J.A. 112.) By September of 2018, the backlog had persisted for so long that Chief Der asked Mr. Chapman to put together a plan to help Mr. Chapman and his region catch up on the significant number of delinquent reports. (J.A. 113.) In particular, Chief Der said "if we can't catch up, we may need to assign folks to desk duty

to [help]."[1] (J.A. 113.) The issue, however, did not resolve because, by November of 2018, NERO still had 143 incomplete cases. (J.A. 114.)

Procedural History

On February 7, 2022, Mr. Chapman filed a charge of discrimination, based on race and retaliation, with the Maryland Commission on Civil Rights ("MCCR") and Employee Equal Opportunity Commission ("EEOC"). (J.A. 262-264.) On June 16, 2022, he amended his charge to include a discrimination claim based on color. (J.A. 265-267.) The EEOC issued Mr. Chapman's right-to-sue letter on November 22, 2022. (J.A. 8.)

Mr. Chapman filed suit on February 17, 2023, asserting Title VII claims of race discrimination, color discrimination, and retaliation (Counts I-III), a claim based on the Maryland Fair Employment Practices Act (Count IV), a retaliation claim under the Family and Medical Leave Act (Count V), and a claim based on violations of 42 U.S.C. § 1981 and § 1983 (Count VI). (J.A. 6-34.)

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[1] Temporarily reassigning a fire marshal to allow them to focus on reducing their backlogged reports is not a new concept for the Office. For example, in 2019, the Office temporarily reassigned Deputy Fire Marshal Brian Quick from NERO to the Western Regional Office, specifically to focus on submitting his overdue reports. (J.A. 110.) He returned to his unit as soon as he did. (J.A. 110.)

SUMMARY OF ARGUMENT

For years, Mr. Chapman failed to ensure that he and his subordinates timely submitted their fire origin reports, which he readily admits is an essential function he neglected to perform. This dereliction became so severe and persisted for so long that, at one point, Mr. Chapman and his region maintained a backlog of delinquent reports that totaled more than all the other regions combined. Nevertheless, despite numerous efforts by Mr. Chapman's supervisors to help get him back on track, the Office was eventually forced to discipline Mr. Chapman's continued failure to meet the Office's basic expectations of a fire marshal and of a supervisor. Consequently, the district court correctly concluded that Mr. Chapman failed to establish a prima facie case of discrimination because he (1) cannot show satisfactory job performance, and (2) cannot identify any similarly-situated comparators who engaged in misconduct that was as serious as his, but that the Office treated more favorably.

ARGUMENT

I. THIS COURT REVIEWS THE DISTRICT COURT'S GRANT OF SUMMARY JUDGMENT FOR LEGAL ERROR.

Appellate review of summary judgment decisions is de novo. *Stanton v. Elliott*, 25 F.4th 227, 234 (4th Cir. 2022). Under Rule 56 of the Federal Rules of Civil Procedure, summary judgment is proper when there is no genuine dispute of material fact and the moving party is entitled to judgment as a matter of law. *English v. Clarke*,

90 F.4th 636, 645 (4th Cir. 2024); Fed. R. Civ. P. 56(a). At summary judgment, however, the non-moving party cannot create a genuine issue of fact by pointing to a scintilla of evidence or building one inference upon another. *Anderson v. Liberty Lobby*, 477 U.S. 242, 252 (1986); *Beale v. Hardy*, 769 F.2d 213, 214 (4th Cir. 1985).

Conclusory allegations, speculation, hearsay, and self-serving, uncorroborated assertions simply will not suffice. *Dash v. Mayweather*, 731 F.3d 303, 311 (4th Cir. 2013); *see also Evans v. Technologies Applications & Serv. Co.*, 80 F.3d 954, 962 (4th Cir. 1996). Rather, a plaintiff must provide enough admissible evidence to "carry the burden of proof" at trial. *Mitchell v. Data Gen. Corp.*, 12 F.3d 1310, 1315-16 (4th Cir. 1993); *Anderson*, 477 U.S. at 252.

II. THE DISTRICT COURT CORRECTLY CONCLUDED THAT MR. CHAPMAN FAILED TO ESTABLISH PRIMA FACIE CASES OF DISCRIMINATION AND RETALIATION.

The undisputed facts in this case establish that Mr. Chapman's discrimination and retaliation claims cannot survive summary judgment as a matter of law. Mr. Chapman had two avenues through which he could have sought to establish his claims: either (1) through direct evidence of retaliation and discrimination; or (2) through the burden-shifting framework set out in *McDonnell Douglas Corp. v. Green*, 411 U.S. 792 (1973). *See Wannamaker-Amos v. Purem Novi, Inc.*, 126 F.4th 244, 255 (4th Cir. 2025). Since Mr. Chapman has failed to produce any direct evidence of discrimination or retaliation in this case, he must proceed under the *McDonnell Douglas* analysis.

Accordingly, Mr. Chapman must first establish prima facie cases of discrimination and retaliation, and then prove that any legitimate, non-discriminatory justification the Office offers for its actions is pretextual. *See Texas Dep't of Cmty. Affs. v. Burdine*, 450 U.S. 248, 253 (1981). Here, Mr. Chapman fails in both respects, and the district court correctly granted summary judgment in the Office's favor.

A. The District Court Correctly Concluded That Mr. Chapman Failed to Establish a Prima Facie Case of Race or Color Discrimination Because He Cannot Show Satisfactory Job Performance or That He was Subjected to Disparate Treatment.

To establish a prima facia case of discrimination, Mr. Chapman must show (1) that he is a member of a protected class, (2) that he had satisfactory job performance at the time of the alleged discrimination, (3) that he suffered an adverse employment action, and (4) that similarly situated employees outside of his class were treated differently. *Coleman v. Maryland Court of Appeals*, 626 F.3d 187, 190 (4th Cir. 2010), aff'd, 566 U.S. 30 (2012). In this case, Mr. Chapman cannot satisfy either the second or fourth element.

Contrary to Mr. Chapman's assertions, see Appellant's Br. 15, 22-23, the Office never conceded that he suffered adverse actions under Title VII, especially since all of the actions in question were brought on by his own conduct. (J.A. 428-432); *see also Von Gunten v. Maryland*, 243 F.3d 858, 869 (4th Cir. 2001), *abrogated on other grounds by Burlington N. & Santa Fe Ry. Co. v. White*, 548 U.S. 53 (2006) (refusing to consider the repercussions of a disciplinary investigation as adverse actions under Title VII and

holding that "terms, conditions, or benefits of a person's employment do not typically, if ever, include general immunity from the application of basic employment policies or exemption from a state agency's disciplinary procedures").

CONCLUSION

The judgment of the United States District Court for the District of Maryland should be affirmed.

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

1. This brief complies with the type-volume limitation of Federal Rule of Appellate Procedure 32(a)(7)(B) because this brief contains 1,734 words, excluding the parts of the brief exempted by Rule 32(f).

2. This brief complies with the typeface requirements of Federal Rule of Appellate Procedure 32(a)(5) and the type style requirements of Rule 32(a)(6) because this brief has been prepared in a proportionally spaced typeface, EB Garamond, in fourteen-point type.

/s/ Kyle A. Ashe

CERTIFICATE OF SERVICE

I hereby certify that on this 21st day of March, 2025, the foregoing Brief of Appellee was served on all counsel of record via the Court's electronic filing system.

/s/ Kyle A. Ashe